REPUBLIC OF NAMIBIA

MINISTRY OF HEALTH AND SOCIAL SERVICES

RESPONSE BY DR KALUMBI SHANGULA (MP), MINISTER OF HEALTH AND SOCIAL SERVICES, TO QUESTIONS RAISED BY HON KAMATI THEOFELUS (PDM) IN THE NATIONAL ASSEMBLY REGARDING PEOPLE WITH DISABILITIES EXPERIENCING CHALLENGES TO ACCESS DISABILITY GRANTS

19 SEPTEMBER 2024

NATIONAL ASSEMBLY

**Check Against Delivery.*

Honourable Speaker
Honourable Members!

1. I rise to respond to the question posed by Hon Kamati Theofelus of PDM regarding situations where medical doctors are alleged to have denied persons with disabilities the necessary documents to facilitate the applications for disability grant.

2. Disability grants are given to eligible persons with verified and recognised forms of disability. The verification of the extent of disability is done through a physical and medical evaluation of a person by a qualified health care professional. In order to inject a level of objectivity and consistency in the evaluation process, specific tools have been developed, to assist the health care professionals in such evaluation.

3. Diligence and care are applied and exercised in order to ensure that those who need to be assisted and provided with disability grant are given the benefit. At the same time, care is also taken to ensure that the system is not subjected to abuse through dishonest conduct. In this regard, several variables of enquiry, are considered. I state categorically that there is no deliberate act on the part of health care professionals to make it difficult or to deny bona fide and eligible persons accessing the disability benefit. Our posture has always been and will continue to be one of improving service delivery for all persons, within the contours of our mandate.

4. Where health care professionals such as Doctors or medical officers refuse to or are hesitant to provide essential document to support applications for disability grants, reasons for such conduct would need to be unpacked. I can state that, such hesitation can only arise or manifest, where there are valid reasons based on the situation or condition of the applicant. We are aware of unfortunate situations where persons would attempt to lodge applications for disability grants, while such persons, on objective construction, would not be bona fide eligible for a disability grant. This is where the element of potential abuse emerges. Surely, where such potential abuse is apparent, medical officers have a duty to point such abuse out, and to refuse to issue documents to such applicants.

5. There are several reasons why the documents requested from Medical Officers may not be issued readily. These include the following:

5.1. Insufficient Information

There are situations where a patient submitting an application for a disability grant is being seen by that Medical Officer for the first time. Such medical officer would need time to familiarise himself or herself with the situation of the applicant, and to review the information submitted with the application. If the information submitted is not comprehensive, accurate or complete, this may lead to a delay in the finalization of the process.

5.2. *Complexity of Forms*

Some Medical Officers may not be fully familiar with the Disability Grant Forms and this may inject some delay in the completion of the process. The forms are complex and require specific details and documentation. Medical officers need to handle the forms and the entire process meticulously.

5.3. *Abuse of disability grant*

The biggest concern of Medical Officers is the potential abuse of disability grant by non bona fide applicants. Abuse of disability grants arises from different aspects involving a mix of personal, systemic, and procedural factors. The most common reasons are:

5.3.1. *Misrepresentation of disability also known as malingering*

Applicants may seek to exaggerate or falsify their symptoms or impairments to qualify for benefits. This can include exaggerating the severity of their condition or providing misleading information. If an applicant is not bona fide, Medical Officers would decline completing disability forms.

5.3.2. *Fraudulent Claims*

Some individuals may use false documentation or manipulate medical records to secure disability benefits. This can involve going from one doctor to another to obtain supportive but inaccurate medical statements. There is a need for care to prevent such abuse.

5.3.3. *Misunderstanding of the System*

Some individuals may not fully understand the criteria for eligibility for disability grants or may believe that they are entitled to benefits despite not meeting the requirements.

5.3.4. *Pressure from Others*

In some cases, individuals might be cajoled or pressured by others, such as family members or acquaintances to seek to exploit the disability grant system.

6. It should be noted that refusal to complete forms without valid reasons is a breach of ethical or professional standards. Doctors are expected to uphold high standards of care, which includes completing necessary documentation to support bona fide eligible applicants access to benefits.

7. What may be construed as refusal to issue the documents needed is under normal circumstances an indication that the Doctor or health professional does not have adequate support documents or information or resources to complete the forms. The ability to make

proper assessments on disabilities may require advanced laboratory and diagnostic tests and specialist assessment, which may not be available at some health facilities. In such cases, referral to specialised centres is required. This may lead to more time needed to complete the process.

Honourable Speaker,

8. The Ministry is taking steps to address concerns regarding the process of providing needed documents to support applications for disability grants. For example, the relevant forms are being reviewed and a comprehensive Disability Policy Guideline on the Assessment of the Functionality of Disability is being developed in order to simplify the assessment process, provide improved assessment tools for healthcare professionals, and outline the referral pathway and appeal processes, when needed. This aims to reduce complexity and offer better support to medical officers and patients.

9. Medical officers play a critical role in providing objective assessments of disability. They are tasked with examining patients, determining the degree of disability, and documenting their findings. However, the decision to award or reject a disability grant is made by the Directorate: Social Protection Services, based on the comprehensive assessment provided by medical officers and other specialists. The Ministry of Health and Social Services emphasizes that disability grants are based on the functionality of a person rather than the mere presence of a disability. Disability grant is not automatic like old age grant which are given automatically once a Namibian attains the age of sixty years. Medical officers are expected to provide detailed and accurate assessments, ensure that patients receive optimal treatment and document all relevant findings and specialist reports.

10. In order to enhance the effectiveness of the process of the assessment of the disability grant applications, the MOHSS is focussed on ensuring clear guidelines, training and streamlined procedures. This integrated approach addresses the concerns raised at different for a and highlights proactive steps being taken to resolve these challenges. Reducing the abuse of disability grants is imperative and must focus on improving the accuracy and thoroughness of disability grant application assessments, enhancing oversight and monitoring, and ensuring that penalties for fraud are clearly defined and enforced.

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